

M/s Sarv Shakti Ice Industries v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 28 July 2021 · Writ-C No. 17357 of 2021 · WRIT - C No. 17357 of 2021
 · **Writ disposed; bill correction relegated to Clause 6.5(b)(ii) application.**

HEADNOTE

A consumer's writ challenging a recovery certificate for electricity charges of Rs. 60,00,040 and seeking bill correction, on the plea that deposits had not been credited, was not decided on disputed facts. The Division Bench treated the correction prayer as referable to Clause 6.15 of the U.P. Electricity Supply Code, 2005, and disposed of the petition directing that if the petitioner applied under Clause 6.5(b)(ii) against a deposit of Rs. 20 lakh within 15 days, the licensee should decide the correction after hearing within two weeks, giving credit for proved deposits since May 2021.

FACTUAL SUMMARY

The petitioner, an ice-manufacturing concern, challenged a recovery certificate dated 17 February 2021 issued by the licensee (respondent no. 4) for electricity charges of Rs. 60,00,040. It complained that amounts already deposited had not been given credit. The licensee's counsel submitted that the petitioner had paid nothing since 2014. The petitioner sought correction of the bill. The Division Bench noted that disputed facts were involved and declined to keep the writ pending or call for a counter affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

bill correction against recovery certificate; relegation to Code application

HOLDING

A writ challenging a recovery certificate and seeking correction of an electricity bill will not be kept pending where the facts as to deposits and arrears are in dispute. The Court treated the correction prayer as referable to Clause 6.15 of the Uttar Pradesh Electricity Supply Code, 2005, and disposed of the petition by directing that if the petitioner filed an application under Clause 6.5(b)(ii) against a deposit of Rs. 20,00,000 before the licensee within 15 days, the licensee may pass appropriate orders on the correction within two weeks after hearing. Amounts deposited since May 2021, of which proof is annexed with the objections, may be given benefit toward that deposit. ¶ 1

FLAG The Court referred the correction prayer to Clause 6.15 but directed the application under Clause 6.5(b)(ii). Both numbers are recorded as stated; neither is silently conformed to the other or to Clause 6.15(b).

PRINCIPLE TAGS

clause-6.15-two-year-limitation-relegated-to-authority The Court treated the prayer for bill correction vis-à-vis a recovery certificate as referable to Clause 6.15 but did not construe the two-year bar, and relegated the consumer to an application before the licensee under Clause 6.5(b)(ii) on deposit. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RECOVERY OF THE CERTIFIED ARREARS WAS BARRED BY THE TWO-YEAR LIMITATION IN CLAUSE 6.15(B)

Clause 6.15 was named as the provision to which correction was referable; the bar was not applied or refused. ¶ 1

NOT DECIDED — WHETHER THE PETITIONER'S DEPOSITS HAD IN FACT BEEN MADE AND NOT CREDITED, AND WHETHER ANY AMOUNT HAD BEEN PAID SINCE 2014

¶ 1

NOT DECIDED — LEGALITY OF THE RECOVERY CERTIFICATE DATED 17 FEBRUARY 2021 ON THE MERITS

¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.